

26PSCV01285 26PSCV01285

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 26PSCV01285 Hearing Date: September 14, 2026 Dept: G

Plaintiff/Cross-Defendant Sheryl

Smoot-Lindholm's Demurrer to Defendant/Cross-Complainant Richard Lindholm's

Amended Cross-Complaint

Respondent:

Defendant/Cross-Complainant Richard Lindholm

TENTATIVE

RULING

Plaintiff/Cross-Defendant

Sheryl Smoot-Lindholm's Demurrer to Defendant/Cross-Complainant Richard

Lindholm's Amended Cross-Complaint is CONTINUED.

BACKGROUND

This

is an action for breach of contract and breach of fiduciary duty between two former spouses. Plaintiff/cross-defendant

Sheryl Smoot-Lindholm (Plaintiff) and defendant/cross-complainant Richard

Lindholm (Defendant) are allegedly the sole members of nominal cross-defendant

Chantrelle's Catering, LLC (Chantrelle's), an event planning and catering company. Chantrelle's allegedly operates

out of Padua Hills Theatre, which is allegedly owned by nonparty City of

Claremont and leased by nonparty Padua Hills, LLC (Padua Hills). Padua Hills allegedly assigns its rights to

use Padua Hills Theatre to Chantrelle's, and the agreement allegedly provides

that Padua Hills must approve any material change in the ownership or operation of Chantrelle's.

In

early 2024, Defendant allegedly gained interest in leaving Chantrelle's based on Plaintiff's unexplained three-month absence from the business. On February 13, 2024, Plaintiff and Defendant allegedly hired nonparty Ron Afuso (Afuso), an independent evaluator, to determine the value of Chantrelle's. In

2024, Plaintiff allegedly took other monthslong absences from Chantrelle's, gave free events and services using Chantrelle's resources to her friends, removed certain Chantrelle's employees to replace them with her friends, removed other Chantrelle's employees to replace them with inexperienced and overpaid employees, paid the salary and living expenses of the parties' son using Chantrelle's resources, and used Chantrelle's resources to pay for personal expenses and buy herself gifts. On October

30, 2025, Afuso allegedly issued a final valuation. On December 4, 2025, Defendant allegedly emailed Plaintiff offering to sell his interest in Chantrelle's to her. On January 20, 2026, Plaintiff allegedly accepted Defendant's offer to buy his interest.

On February 4, 2026, Defendant allegedly challenged Afuso's final valuation. On February 12 and 25, 2026, Plaintiff allegedly emailed Defendant to complete the assignment. On March 1, 2026, Defendant allegedly emailed Plaintiff claiming entitlement to Chantrelle's future profits and challenging Afuso's final valuation.

On

April 8, 2026, Plaintiff filed the Complaint, alleging causes of action for (1) breach of contract (specific performance) and (2) declaratory relief.

On

June 9, 2026, Defendant filed the Cross-Complaint. On August 3, 2026, Defendant filed the operative Amended Cross-Complaint, alleging causes of action for (1) breach of fiduciary duty and (2) fraud.

On

August 11, 2026, Plaintiff filed this demurrer.

On August 28, 2026, Defendant filed the opposition, and on September 3, 2026, Plaintiff filed the reply.

The

demurrer is set for hearing on September 14, 2026.

ANALYSIS

Plaintiff

demurs to the second cause of action for fraud in the Amended Cross-Complaint. For the following reasons, the demurrer is CONTINUED.

Legal

Standard

Pursuant

to Code of Civil Procedure section 430.41, prior to filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.”

(Code Civ. Proc., §430.41, subd. (a).)

It further provides that “the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies.” (Code Civ. Proc., § 430.41, subd. (a)(1).)

While

Code of Civil Procedure section 430.41, subdivision (a)(4) makes clear failing to meet and confer is not grounds to overrule a demurrer, courts “are not required to ignore defects in the meet and confer process” and if the court determines “no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355 & fn. 3.)

Discussion

Plaintiff’s

counsel provides a declaration that states that they “met and conferred . . . pursuant to Code of Civil Procedure section 430.41.” (Dem., Ryan Decl., ¶ 2.) However, counsel did not specify whether they met and conferred in person, by video conference, or by telephone with Defendant’s counsel, so the court cannot determine whether they properly met and conferred as required by Code of Civil Procedure section 430.41.

Therefore,

the demurrer is CONTINUED, and Plaintiff's counsel is ORDERED to MEET AND CONFER with Defendant's counsel by telephone, video conference, or in person, if they have not done so already, and to FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer.

CONCLUSION

For

these reasons, the demurrer is CONTINUED to a date to be determined at the hearing in Department G (Pomona).

Plaintiff/cross-defendant

Sheryl Smoot-Lindholm's counsel is ORDERED to MEET AND CONFER with defendant/cross-complainant Richaed Lindholm's counsel regarding the present demurrer and to FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer.